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NJ STATE POLICY UPDATES

July 27, 2026

New Jersey Enacts FAIR Act to Restrict Algorithmic Rent

Driving NJ State Policy



Transportation

New E-Bike Registration and Insurance Requirements Now in Effect –

Bill **S4834**, signed by then-Gov. Phil Murphy in January, took effect on July 20th, establishing New Jersey's first registration, licensing, and insurance requirements for electric bikes. The law creates two classifications: e-bikes which top out at 20 mph must be registered with the NJ Motor Vehicle Commission, while higher-speed e-bikes reaching up to 28 mph will require registration and liability insurance. Riders must be at least 15 years old, have a valid license or Motor Vehicle Commission approved e-bike license, and wear a helmet. The legislation was spurred by a rise in fatal e-bike crashes across the state. Nationally, e-bike injuries have increased 293% between 2019 and 2022. This law affects the growing number of riders who rely on e-bikes for daily transportation. Some bike and e-mobility advocates **oppose the legislation**, arguing it adds unnecessary barriers to sustainable transportation options, disproportionately burdening those least able to absorb new licensing and insurance costs.

Public Administration

Gov. Sherrill Reveals Motor Vehicle Commission Error of 6,600 Ineligible

Voters – On July 21st, Governor Mikie Sherrill announced that a **software malfunction in New Jersey's Motor Vehicle Commission** (MVC) system inadvertently registered around 6,600 people. This issue reportedly originated in June 2023, persisting for nearly a year, and occurred prior to Sherrill taking office. A preliminary state review found that approximately 400 of those individuals later voted in various elections, though Sherrill said there is no evidence at this time that any election outcome was

affected. The specific problem within the MVC system involved registering non-citizens as citizens, despite their acknowledgment of being non-citizens during their licensing process. This disclosure quickly attracted national media attention, resulting in renewed accusations from **state Republicans** and the Trump administration advocating for investigations and stringent reforms to voting and the automatic voter registration process. Currently, **twenty-three Assembly Republicans** are seeking to establish a special legislative committee endowed with subpoena powers with the intention of calling forward witnesses such as the former and current Secretaries of State, high-ranking MVC officials, and representatives from Idemia, the MVC system vendor. Additionally, the **Trump administration has once again requested comprehensive voter records** for all registered non-citizens, heightening federal oversight in this matter. Many Republicans have stressed the immediate necessity for thorough audits and increased transparency to rebuild trust in New Jersey's electoral processes, while voter advocates have argued that this was an administrative error and not indicative of a larger issue of voter fraud in the state. Currently, Governor Sherrill's office is conducting its own investigation and intends to terminate its contract with Idemia, which has asserted that it bears no accountability for this registration error.

Housing

New Jersey Enacts FAIR Act to Restrict Algorithmic Rent Pricing – On July 20th, Gov. Mikie Sherrill signed the Forbidding the Algorithmic Inflation of Rent (FAIR) Act into law as **P.L.2026, c.43**, making New Jersey the fourth state to explicitly regulate algorithmic rent-setting practices. This legislation is one of New Jersey's latest efforts to address housing affordability. The new law restricts landlords and property management companies from using software that pools non-public rental data such as occupancy rates, housing supply level, lease termination dates, and

competitor pricing from competing properties to recommend rental prices. **National research** estimates that rent-pricing algorithms added \$70 per month to rents in buildings using them, costing renters \$3.8 billion in 2023. The legislation also makes it a violation of New Jersey's antitrust law to use software that collects private rental information and recommends rental prices or lease terms across multiple properties. Supporters argue that these systems reduce competition and contribute to rising housing costs during New Jersey's ongoing affordable housing crisis. The FAIR Act will take effect on July 1, 2027, and the New Jersey Attorney General will oversee complaints involving possible violations.

Education

New Jersey Public School Enrollment Falls to Lowest Level in Decades

– The New Jersey Department of Education recently **reported** that enrollment in public schools totaled 1,357,450 students in the 2025-2026 school year, marking the lowest level of public-school enrollment in New Jersey since 2001-2002. Enrollment in public schools fell 23,732 students between the 2024-2025 and 2025-2026 school years. Though enrollment changes vary across districts with 227 of 663 districts and charter schools reporting increases from the previous year. Nationally, falling birth rates are expected to lead to a 2.7 percent drop in students attending public schools; the number of students in New Jersey is expected to continue to **drop by up to 3.3 percent** in the next four years. Despite these falling enrollment numbers and a record \$12.4 billion allocated to education in the state budget, schools remain strained by **rising healthcare, pension, and facility costs**.

Economics

Gov. Sherrill Signs Bill to Shield New Jersey Grocery Shoppers from

Surveillance Pricing – Gov. Sherrill signed **Bill A4085**, the Fair Price Protection Act, into law on July 23rd. Led by Assemblyman Chigozie Onyema (D-28), the bill prohibits grocery stores from using consumers' personal information—including online activity, geolocation, purchasing history, or other collected data—to set different prices for identical products based on an algorithm's prediction of what a shopper is willing or able to pay. It also prohibits algorithmic surveillance pricing through technologies such as **electronic shelf labels**. At the same time, the legislation preserves cost-based pricing, publicly disclosed bona fide discounts, and opt-in loyalty or rewards programs that offer uniform benefits to all participating customers. While this bill doesn't ban new or existing electronic shelf labels, the law does impose a **one-year moratorium on new electronic shelf labels** while the New Jersey Innovation Authority studies their effects and reports to the Governor and Legislature at least six months before the moratorium expires. The Attorney General may enforce the Act by bringing **civil actions to recover actual damages** or a civil penalty of \$50,000 per violation, whichever is greater. The law will take effect on August 1, 2027.

Health

New Jersey Joins World Health Organization Network Monitoring

Infectious Diseases – On July 22nd, Gov. Sherrill signed Bill **A4075** into law as P.L.2026, c.50, which authorizes the New Jersey Department of Health to **establish participation in the Global Outbreak Alert and Response Network (GOARN)**, a World Health Organization (WHO)-coordinated network that supports detection of and response to infectious disease outbreaks. The bill cited the federal withdrawal from WHO as part of its rationale, as infectious diseases and other national and global public health emergencies threaten the safety and wellbeing of New Jersey

residents, as well as the economy. This amended version includes language specifically permitting New Jersey to participate with the Global Outbreak Alert and Response Network (GOARN) rather than requiring it. The bill directs the New Jersey Department of Health to increase communication and coordination efforts with GOARN by establishing multiple points of contact, submitting documents required for participation, participating in related training, and collaborating with offices on the federal, state and local level to support emergency preparedness for public health emergencies. The bill does not make New Jersey a member of WHO, override federal law, require disclosure of confidential health information, or mandate spending beyond available funds. This will ensure that New Jersey residents are well informed of public health threats as they emerge, and that we can prepare to navigate a public health crisis as it presents itself.

Environment

New Jersey's "Skip the Stuff" Law Goes into Effect August 1st – New Jersey's "Skip the Stuff" law (**S3195**) takes **effect on August 1st, 2026**, requiring food service businesses to provide single-use utensils and condiments only upon customer request. It was signed into law January 2026 and is **touted as the most robust legislation of its kind in the country**, applying to restaurants, cafes, food trucks, cafeterias, and other businesses serving meals for takeout, dine-in, drive-thru, or delivery. Businesses must provide only the items and amounts requested, and online ordering systems must default to no utensils or condiments. Rather than creating a ban on single-use items, the law requires full-service restaurants that seat 10 or more to provide reusable utensils for dine-in customers. The law also directs the Department of Environmental Protection to conduct an education campaign on the environmental and financial benefits of reducing single-use items, while exempting school

cafeterias, healthcare settings, and correctional facilities from these rules. The law is intended to address the growing environmental strain of plastics on the environment.

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